REQUEST TO THE DISTRICT ATTORNEY GENERAL - CLEAR A CONVICTION FOR ILLEGAL REGISTRATION OR VOTING

TO: The office of the District Attorney General for the judicial district of the convicting court
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FROM: Maria-Alejandra O'Shaughnessy-Whitfield
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DATE OF BIRTH: 1968-12-31

REQUEST TO THE DISTRICT ATTORNEY GENERAL

I am making the written request described below.

The matter this request concerns:

Court or office that handled the matter:
.....

Case or docket number:
.....

Date of the disposition:
.....

What I am asking for:
.....
.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this request personally.)

ELIGIBILITY RECORD - CLEAR A CONVICTION FOR ILLEGAL REGISTRATION OR VOTING

FOR: Maria-Alejandra O'Shaughnessy-Whitfield
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ELIGIBILITY RECORD

Complete every applicable item from your own records. These are the exact generation questions in the committed route contract.

Item 1. Which court convicted you, in which county, and which judicial district is that? The request goes to that district's district attorney general.
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Item 2. What is the docket or case number?
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Item 3. What is the exact T.C.A. section you were convicted under? This route reaches only Sec. 2-19-107, illegal registration or voting.
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Item 4. Does the judgment name T.C.A. Sec. 2-19-107 specifically, rather than another elections or fraud provision?
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Item 5. On what date was the offence committed?
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Item 6. On what date were you convicted?
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Item 7. On what date did you complete the entire sentence? The fifteen-year clock runs from then, and it is measured on the day the petition is filed.
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Item 8. Is every fine, restitution amount, court cost and other assessment paid in full? Anything outstanding means the sentence is not complete.

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Item 9. Have you completed any term of imprisonment or probation and met every condition of supervised or unsupervised release?

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Item 10. List every other conviction you have anywhere, including federal and out-of-state convictions.

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Item 11. Did this offence happen before any conviction you have for an offence that cannot be expunged?

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Item 12. Have you ever been granted an expunction before under T.C.A. Sec. 40-32-107(a), (b), (c) or (e)?

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Item 13. What is the state control number on your TBI criminal history?

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Item 14. Are you doing this to get your voting rights back? That is a separate remedy and this route does not deliver it.

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.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this record personally.)

FILING AND HANDOFF INSTRUCTIONS - CLEAR A CONVICTION FOR ILLEGAL REGISTRATION OR VOTING

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Expunction of a conviction for illegal registration or voting, T.C.A. Sec. 40-32-107(c) with procedure at Sec. 40-32-108.

Expunction of the conviction record. Under T.C.A. Sec. 40-32-110 the petitioner is entitled to have all public records of the expunged conviction destroyed in the manner set out in the chapter, restoring the person in contemplation of law to the status occupied before arrest, indictment, information, trial and conviction. A person convicted of illegal registration or voting under T.C.A. Sec. 2-19-107, where fifteen years have elapsed since completion of the sentence, every sentence requirement has been fulfilled, the offence occurred prior to any conviction for an expunction-ineligible offence, and the person has not previously been granted expunction under Sec. 40-32-107(a), (b) or (c). The fifteen-year wait is the longest in the chapter - three times the misdemeanour and Class E felony period and half again the Class C and D felony period - and it attaches to a single named offence rather than to an offence class. Codified through Public Chapter 608 and untouched by Public Chapters 719, 930 and 1061. Subsection (c) is not reached by the Sec. 40-32-108(d)(2) rebuttable presumption, which is keyed only to petitioners eligible under Sec. 40-32-107(a)(1)(A) to (E), so no presumption applies and the court weighs the interest of the petitioner against the best interests of justice and public safety.

WHERE IT GOES

The office of the district attorney general for the judicial district of the convicting court, then the clerk of that court

Once the district attorney general's office prepares the petition and proposed order, the petitioner files them with the clerk of the convicting court under Sec. 40-32-108(a) and pays the clerk's fee under T.C.A. Sec. 8-21-401. The generated artifact on this route is the participant's own controlled written request to the office of the district attorney general, together with the participant's controlled eligibility record. It is not the statutory petition and it is not the proposed order: T.C.A. Sec. 40-32-108(e) requires both of those to be prepared by the office of the district attorney general and given to the petitioner to be filed with the clerk. LegalEase does not draft, complete, sign or hold out either instrument as its own, and does not make the district attorney general's legal determination.

Venue: The convicting court, under Sec. 40-32-108(a). The request goes to the district attorney general for that judicial district. A person with convictions in more than one judicial district deals with each separately.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: A clerk's fee applies. T.C.A. Sec. 40-32-108(a) provides that a person applying for expunction of records under the section must be charged the appropriate court clerk's fee pursuant to Sec. 8-21-401. The amount is set by Sec. 8-21-401, whose current text sits in the licensed Tennessee Code and

was not retrievable from an official Tennessee source, so no figure is quoted. Public Chapter 719 did not change any fee provision. Fee waiver as recorded: No indigency or fee-waiver provision appears anywhere in the reorganized T.C.A. Sec. Sec. 40-32-106 through 40-32-110. None is asserted.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the petition on the district attorney general, who may submit recommendations within 60 days with a copy to the petitioner and may file evidence under seal which is confidential and not a public record. The court may not order sooner than 61 days after service.

WHAT THE RECORD SAYS YOU MUST KNOW

- The TBI certificate under T.C.A. Sec. 40-32-102(c) is required on this route and an order of expunction must not be entered unless it is attached. It is a court instrument completed by court staff and submitted to the TBI. LegalEase does not generate it, does not complete it and does not assert it has been obtained.
- Not official_pdf_fill, because no participant form exists: the Tennessee AOC publishes no expunction form of any kind, and TBI form BI-0333 is a court order carrying an approved-for-entry block with signature lines for defence, the district attorney general and the judge. Not process_guidance, because a genuine participant-facing written submission exists and its destination, addressee and operative content are all determined. The generated artifact is the request and the eligibility record, never the petition, the proposed order, the TBI certificate or the clerk's instrument.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- The office of the district attorney general declines to prepare the petition, or indicates it will oppose. Self-help stops and the participant is handed off to an attorney; the participant keeps the generated request, the controlled factual record and the instructions.
- Eligibility is disputed by the district attorney general's office. That is a contested determination for that office and, on filing, for the court; it is handed off to an attorney rather than argued in the packet.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee. Handed off to an attorney before anything is sent.
- Any unpaid court costs, fines, restitution or other assessments, which mean the sentence is not complete. The participant is directed to the convicting court's clerk to resolve the balance before the route reopens.
- Any borderline offence whose exact section cannot be matched against the current eligible list. Handed off to an attorney.
- Federal, military, tribal or out-of-state records, immigration consequences and any security-clearance question, each of which is referred out because Tennessee expunction does not reach them.
- Any question whether the conviction was under T.C.A. Sec. 2-19-107 rather than another elections or fraud provision. The route reaches only that section, so an unresolved identification is handed off to an attorney rather than guessed.
- Any collateral question about restoration of voting rights, which is a separate remedy under separate machinery and is referred out.
- Under T.C.A. Sec. 40-32-108(e) the petition and proposed order must be prepared by the office of the district attorney general and given to the petitioner to be filed with the clerk of the court. They are

prosecutor instruments. LegalEase generates the participant's request and eligibility record and nothing else, and never characterises either generated document as the district attorney general's petition or proposed order.

THE PAGES IN THIS SET

- tn_illegal_voting-participant-request-to-district-attorney-1: the written request to the prosecutor's office the record names as the preparer (Clear a conviction for illegal registration or voting)
- tn_illegal_voting-participant-eligibility-record-2: the participant's own record of the facts the prosecutor's office will need (Clear a conviction for illegal registration or voting)